

Calendar Line 1

Case Name: *Anna Mungaray Revocable Trust dated January 21, 2022*

Case No.: 23PR196178

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

After significant litigation in dockets 23PR196178 and 23CV409626,¹ the beneficiaries of the Anna Mungaray Revocable Trust, dated January 21, 2022 entered into a settlement agreement. On September 19, 2025, the court issued a written order approving the settlement agreement and reserving jurisdiction pursuant to Code of Civil Procedure section 664.6.

Currently before the court is a motion by Yvonne Drew (“Drew”), one of the beneficiaries, seeking to enforce one of the terms of the settlement agreement, namely, that Art Mungaray, Jr. (“Trustee”), current trustee of the trust, will dismiss his petition for orders confirming trust assets filed December 5, 2023. The motion is unopposed.

DISCUSSION

At the outset, the court notes that Drew has not filed a proof of service evidencing that she served the motion on the other parties to the settlement agreement. While she has attached a proof of service to the proposed order, that proof of service only reflects service of the proposed order itself. Code of Civil Procedure section 1005, subdivision (b) requires that the motion and all documents supporting the motion be served 16 court days before the hearing. Rules of Court 3.1300(c) requires that a proof of service be filed with the court five court days before the hearing. Because Drew has not provided a proof of service evidencing that she served the motion and all supporting documents, the court cannot determine if Trustee has been properly served.

Additionally, Drew has not filed a memorandum of points and authorities in support of her motion. A party filing a motion is required to file a memorandum containing “a statement

¹ These dockets were consolidated on May 6, 2025.